



IN THE HIGH COURT OF PUNJAB AND HARYANA AT
CHANDIGARH

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CRWP-12690-2024

Date of decision: 01.01.2025

KUMKUM AND ANR

....PETITIONERS

V/s

STATE OF PUNJAB AND ORS

....RESPONDENTS

CORAM: HON'BLE MR. JUSTICE SUMEET GOEL

Present: Mr. Nitin Narula, Advocate
for the petitioners.

SUMEET GOEL, J.

1. The petitioners have approached this Court for issuance of necessary directions for protecting their life and liberties which according to them are at stake because they are in a live-in-relationship. The petitioners claim themselves to be major in terms of age. According to the copies of the Aadhar Cards (Annexure P-1 and P-2), the date of birth of the petitioner No.1-Kumkum is 01.12.2006 and the date of birth of the petitioner No.2-Sandeep Kumar is 15.04.2006.

2. The learned counsel for the petitioners submits that a marriage is not a must for providing security to a couple in a 'live-in-relationship' because protection qua life and liberty is sacrosanct and stands at the highest pedestal. He has also placed reliance upon orders passed by the co-ordinate Bench of this Court in '*Sarabjeet Kaur and another versus State of Punjab and others*' in CRWP-102-2022 decided on 07.01.2022; '*Goutam Kumar and another versus State of Punjab and others*' in CRWP-8088-2021 decided on 26.08.2021; *Bharti and Another Versus State of U.T.,*

Chandigarh & others and ‘*Annu Rani & Anr. vs. State of Haryana*’ in CRWP-11060-2023 decided on 15.11.2023.

3. Notice of motion to respondent Nos. 1 to 3 (i.e. official respondents).
4. On the asking of the Court, Mr. Adhiraj Singh Thind, AAG, Punjab, accepts notice on behalf of the official respondents.
5. At this stage, without expressing any opinion on the merits of the case as well as on the age and nature of the relationship between the petitioners; I deem it appropriate to direct respondent No. 2 (SSP) to look into the matter and pass an appropriate order on the representation stated to have been filed by the petitioners before him/her on 26.12.2024 (Annexure P-3) & pass appropriate orders thereupon within two weeks from today.
6. However, if the petitioners are found to have been involved in any other case, then this order shall not preclude the competent authority from taking lawful action against the petitioners.
7. The petition stands disposed off. Pending application(s), if any, shall also stand disposed off.

(SUMEET GOEL)
JUDGE

January 01, 2025
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Whether speaking/reasoned:	Yes/No
Whether reportable:	Yes/No